

**Before the
Federal Maritime Commission**

Docket No. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co., Ltd.

v.

**Samsung Electronics Company, Ltd., Samsung SDS Global SCL Asia Pacific PTE LTD, and
Samsung Electronics Logitech Company, Limited**

RESPONDENT’S MOTION TO DEFER FILING OF A JOINT STATUS REPORT

COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) respectfully submits this motion (“Motion”) to defer the filing of a Joint Status Report, or at least a proposed procedural schedule. The reason for this Motion, elaborated below, is that Respondent has filed a Counterclaim and a Third-Party Complaint, neither of which has yet been answered. Accordingly, any Joint Status Report/Proposed Procedural Schedule would be incomplete and require revision once the Counter-Respondent and Third-Party Respondents have submitted their Answers.

As required by the Commission’s rules, Counsel for Respondent has conferred with Counsel for Samsung Electronics America, Inc. (“SEA” or “Complainant”), but SEA has stated that it is unable to take a position at this time.

MEMORANDUM IN SUPPORT

On May 12, 2025, Respondent served its Answer and Counterclaim to Samsung Electronics America, Inc.’s Complaint, and Respondent’s Third-Party Complaint against Samsung Electronics Company, Ltd., Samsung SDS Global SCL, Asia Pacific PTE LTD, and Samsung Electronics

Logitech Company, Limited (“Third Party Respondents”)(served by the Commission on May 14, 2025). Under the April 11, 2025, Order of the Presiding Officer, the Parties are currently required to file a joint status report and proposed procedural schedule by May 27, 2025.¹

COSCO respectfully submits that it would be inefficient and counterproductive for the Parties to submit separate status reports now and after the Counter-Respondent and the Third-Party Respondents have answered the complaints against them, and for the Presiding Officer to review multiple status reports and order multiple proposed procedural schedules. The initial complaint and the counterclaim and third-party claims must be taken as a whole. Respondent cannot agree to a schedule for just the Complaint, and any schedule for all claims would need to be binding on all parties, including third-party respondents who have not yet answered the complaint against them. Accordingly, Respondent respectfully requests that the Presiding Officer Order that the filing of a Joint Status Report and proposed schedule be deferred until 15 days after all of the Parties have submitted their answers.

The Presiding Officer has broad authority to manage the course of a proceeding, including whether to extend or defer any dates. 46 C.F.R. §502.25(b)(4). This broad authority necessarily includes the filing of joint status reports and proposed procedural schedules, including whether to defer or extend a deadline for such filings.

The Counterclaim against SEA and the Third-Party Complaint against Third-Party Respondents alleges that those entities, acting in concert, willfully and knowingly engaged in an unjust or unfair device or means to obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply, in violation of 46 U.S.C. § 41102(a). The underlying allegations of these pleadings derive from service contracts that the Third-Party Respondents entered into with COSCO, to which SEA is also bound, and from which the Third-Party

¹ Technically, the Joint Status Report is due Sunday, May 25, 2025, but under the FMC’s Procedural Rules the date is extended until the next business day.

Respondents and SEA received monetary benefits including lower rates. Discovery will be conducted on these issues with respect to both the Counterclaim against SEA and the Third-Party Complaint against Third-Party Respondents.

As explained above, moving forward with the joint status report and proposed procedural schedules before the Counter-Respondent and Third-Party Respondents submit their Answers would not be an efficient use of time for either the Parties or the Presiding Officer, as it would simply lead to multiple filings for different schedules and for the Presiding Officer to rule multiple times before reaching a procedural schedule applicable to and binding on all Parties. That problem would be multiplied many times over if discovery were to commence only respecting the Complaint and Counterclaim. Discovery requests and responses between SEA as Complainant and COSCO as Respondent would certainly need to be duplicated in the dispute, including multiple production of deposition witnesses, documents, and responses to interrogatories. This would, among other things, multiply the burden on Respondent in terms of both cost and its ability to run a business.

CONCLUSION

For the reasons set forth herein, Respondent respectfully moves that the Presiding Officer issue an order deferring the filing of a Joint Status Report and draft procedural schedule until 15 days after the last Answer is filed.

DATED: May 23, 2025

Respectfully submitted,

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Attorneys for Respondent, COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I certify that on the 23rd day of May, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

/s/ Rebecca A. Fenneman

Rebecca A. Fenneman